

Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

Crl. Appeal No. 38 of 2014

Ijaz Hussain etc v. The State etc.

Crl. Revision No. 80 of 2014

Mst. Hameeda v. Ijaz Hussain etc.

JUDGMENT

Date of hearing: 16.09.2016.

Appellants by: M/s. Azam Nazir Tarrar, Shahid Azeem, Momin Malik and Bashir Abbas, Advocates with the appellants-Riaz Hussain and Rab Nawaz.

State by: Mr. Muhammad Akhlaq, Deputy Prosecutor General.

Complainant by: Chaudhry Shakir Ali, Advocate.

Aalia Neelum, J.- Ijaz Hussain, Riaz Hussain both sons of Rab Nawaz, Rab Nawaz son of Khuda Bukhsh, all Balouch by caste, residents of Chah Rakhey Khan Wala, Mouza Razai Shah Shumali, Tehsil and District Bhakkar and Aman Ullah son of Fateh Sher, caste Balouch, resident of Mouza Razai Shah Shumali, Tehsil and District Bhakkar, the appellants were involved in case F.I.R. No.324 of 2011, dated 14.6.2011, offence under Sections 302, 147, 149 PPC, registered at Police Station Saddar Bhakkar and were tried by the learned Sessions Judge, Bhakkar. The learned trial court seized with the matter in terms of judgment dated 18.12.2013 convicted the appellants under Section 302(b) PPC read with section 34 PPC and sentenced to undergo **imprisonment for life** with the direction to pay Rs.2,00,000/- each as compensation to the legal heirs of Madah Hussain, deceased under section 544-A Cr.P.C. and in case of default thereof, further undergo imprisonment for six month each. The benefit of Section 382-B of Cr.P.C was also extended in favour of the appellants.

2. Feeling aggrieved by the judgment of the learned trial court, the appellants have assailed their conviction through filing of the instant appeal.

3. The complainant being dissatisfied with the judgment dated 18.12.2013, also filed a **Criminal Revision No.80 of 2014** against the respondents No.2 to 5 for enhancement of sentence of respondents/accused, Ijaz Hussain, Riaz Hussain, Rab Nawaz and Aman Ullah from life to death. As both the matters are arising out of one and the same judgment of the learned trial court, therefore, they are being disposed of through a single judgment.

4. The prosecution story as alleged in the F.I.R (Ex.PD) lodged on the oral complaint of Mst. Hameeda (PW-6) that except herself there are three other married sisters and she being virgin used to reside with her father to serve him. The complainant (PW-6) further alleged that on 14.6.2011 at about 6.00 p.m. she along with her father Madah Hussain was grazing buffalos in a dry pitch situated at a distance of about 150 Karams from her house. In the meanwhile, accused Rab Nawaz, Riaz Hussain, Ijaz Hussain, Aman Ullah and unknown person reached there whereafter Rab Nawaz accused raised Lalkara to teach them a lesson for returning the land. Upon this, accused Riaz Hussain, Ijaz Hussain and Aman Ullah caught hold her father and started beating by inflicting multiple fists blows but father of the complainant rescued himself from the clutches of the accused persons and ran towards home to save his life and when her father reached in his land, the accused persons again caught hold of her father and started beating, resultantly complainant's father fell down on the ground. Accused Rab Nawaz caught hold of her father from his legs and remaining accused persons pressed his neck and on hue and cry, the PWs Nazir Khan, brother-in-law "Bahnoi" and Meesam Tamar "Bhanja" came at the spot but at that time, her father died. The accused persons ran away on arrival of the PWs. The motive behind the occurrence is that the accused persons had forcible possession over the land owned by father of the complainant against which the father of the complainant had filed civil suit in the civil court.

5. After the alleged occurrence, the complainant (PW-6) rushed to the police station for reporting the occurrence and she (PW-6) met with Hafiz Muhammad Rustam, Inspector/SHO (PW-10), who reduced into writing the FIR (Ex.PD) on the oral statement of the complainant (PW-6) and same was read over to the complainant, whereupon the complainant (PW-6) put her thumb mark as a token of its correctness. Thereafter, the Investigating Officer/Inspector/SHO (PW-10) reached at the spot, prepared injury statement (Ex.PJ), inquest report (Ex.PJ/1) of Madah Hussain, deceased and handed over the dead body of the deceased for post mortem examination to Aamir Riaz 931/C (PW-9) from DHQ Hospital, Bhakkar. Thereafter the Investigating Officer (PW-10) prepared rough site plan of the place of occurrence (Ex.PK), took into possession glass P-3 and Sota P-4 belonging to the deceased from the spot vide recovery memo (Ex.PF) and recorded the statements of the prosecution witnesses, namely, Nazir Hussain and Meesam Temaar PWs under section 161 of Cr.P.C. On 15.6.2011 at about 6.30 a.m. Aamir Riaz 931/C produced before him (PW-10) the post mortem examination report of Madah Hussaihe place of occurrence and prepared the scaled site plans Ex.PA and Ex.PA/1 whereon he recorded marginal notes in red ink on 27.6.2011. On 26.6.2011, the Investigating Officer (PW-10) arrested accused Aman Ullah and Ijaz Hussain. On 13.7.2011 he (PW-10) prepared the challan against them. On the application of the complainant, the dead body of Madah Hussian, the deceased was disinterred on the order of the learned Illaqa Magistrate on 15.7.2011 and the doctors conducted the re-post mortem examination of the deceased after exhumation, whereafter the doctors handed over one sealed envelope, one sealed parcel and one sealed jar to Muhammad Imran 972/C who produced the same before the Investigating Officer (PW-10) and he took the same into possession vide recovery memo (Ex.PG). On 17.7.2011 Mst. Hameeda complainant produced before him (PW-10) the turban of accused Rab Nawaz P-1 which was left by him at the spot after the occurrence which was taken into possession vide recovery memo (Ex.PB). On the same day, two CDs P-2/1-2 were produced by one Muhammad Aslam Khan son of Fateh Sher before the Investigating Officer

who took the same into possession vide recovery memo (Ex.PC) and on 24.7.2011 the Investigating Officer recorded statements of Mumtaz Ahmad 553/MHC and Muhammad Tariq 303/C. On 25.7.2011, the Investigating Officer (PW-10) arrested Rab Nawaz accused and on the following day, he sent him to judicial lock up.

6. Having found the accused guilty, the Investigating Officer prepared report under Section 173 Cr.P.C., while placing the names of accused Ijaz Hussain, Aman Ullah, Rab Nawaz in Column No.3 whereas Riaz Husain accused in column No.2 of the Challan to face the trial.

7. The learned trial court formally charge sheeted the appellants on 10.10.2011, to which they pleaded not guilty and claimed trial. The prosecution in order to advance its case produced as many as eleven witnesses. Mst. Hameeda Bibi (PW-6) is the complainant of the case, whereas her testimony was supplemented by Nazir Hussain (PW-7). Hafiz Muhammad Rustom, Inspector/SHO (PW-10) is the Investigating Officer and he also chalked out FIR (Exh.PD). Dr. Muhammad Ishaq (PW-11) was Chairman of the Board who conducted the re-post mortem examination on 15.7.2011 of the dead body of Madah Hussain-deceased. Dr. Muhammad Ishaq (PW-11) conducted re-post mortem examination of Madah Hussain-the deceased on 05.7.2011 and observed as under:-

“On 05.07.2011, I was posted as Medical Superintendent, DHQ hospital, Bhakkar. On the same day, I received the order of learned Judicial Magistrate, Bhakkar for exhumation and re-post mortem examination of Madah Hussain deceased. Firstly, I fixed the date of re-post mortem examination on 12.07.2011 but on that day, I had gone to attend the meeting with Secretary Health, Govt. of Punjab, Lahore and the date was re-fixed as 15.7.2011 for re-post mortem examination. The board for re-post mortem examination was consisting upon myself as chairman and the members were Dr. Muhammad Aslam, District Health Officer, Bhakkar, Dr. Muhammad Ramzan, District Medico-legal Officer, Bhakkar, Dr. Eesab

Khan, District Pathologist, DHQ DHQ Hospital, Bhakkar. On the same date, the standing medical board examined the dead body of Madah Hussain deceased after exhumation and the learned Illaqa Magistrate was also present at that time who handed over the dead body to the Standing Medical Board for post mortem examination. The medical board conducted the post mortem examination of Madah Hussain deceased and observed as under:-

“The dead body brought out from the grave was wrapped in ‘Kaffan’. The dead body was in advance putrefaction stage. Skin and flesh was mostly putrefied. Scalp, hairs were mostly shed out. No mark of violence/injury can be ascertained on the body at that stage due to advanced putrefactive changes. All viscera were putrefied. Scalp and skull were already dissected and vertebrae were healthy. Sample of hyoid bone was taken and dispatched to the Bacteriologist, Govt. of Punjab, Lahore for histopathology.

Final opinion was kept under observation for want of report from Bacteriologist, Govt. of Punjab, Lahore. After receiving the bacteriologist report vide reference No.1100-FH dated 29.11.2011, final opinion was given that most probable mode of death was asphyxia caused by throttling.

Rest of the formal witnesses are formal in nature.

8. On 28.11.2013 the learned Assistant District Public Prosecutor gave up PWs-Mureed Abbas, Muhammad Javed 616/C, Dr. Muhammad Ramzan and Dr. Mazhar Abbas being unnecessary and PW Dr. Imran Ansari being won over by the accused party on the application made by the complainant and after tendering the documents Ex.PN and Ex.PN/1 closed the prosecution evidence.

9. The appellants were also examined under Section 342 Cr.P.C, wherein they opted not to lead defence evidence and not to appear as their own witness in terms of Section 340 (2) Cr.P.C in disproof of allegations levelled against them, however, accused Rab Nawaz produced certain documents i.e. Ex.DD to Ex.DX/22 as well as Mark-DA to Mark-DD and closed his defence

evidence while remaining accused/appellants relied upon the said documents produced by Rab Nawaz accused and intended for not producing any further evidence in their defence. While replying to a question that why this case is against them and why the PWs have deposed against them, Rab Nawaz-appellant made the following deposition:-

“The PWs of the case are very closely related with each others and inimical to me and my other co-accused due to previous enmity stated in my reply to the question No.3. So they have falsely implicated me in this case. It was an unseen occurrence. The deceased was done to death by unknown assailants as deceased was having many enemies. So he was done to death in different manner, different time and different place and later on, due to enmity, I and my sons along with Aman Ullah were implicated in this case to revenge their enmity. The occurrence was un-witnessed. Later on, my enemy was called upon and with due deliberation, consultation and after padding, this false case was registered against me. During the course of investigation, I was not found involved in this case.”

In reply to question No.3 as stated above examined under section 342 Cr.P.C., Rab Nawaz-accused deposed as under:-

“As Mst. Hameeda Bibi was engaged in her childhood with Riaz Hussain accused and after gaining puberty, Riaz Hussain accused refused to marry her. On this account, the enmity started between the parties. Later on, a case under section 307 PPC was also registered between the parties. Subsequently a consolidation proceedings was started in Mouza Razai Shah, in which I along with my sons Ijaz Hussain and Riaz Hussain who were also owners in the landed property which is situated in Mouza Razai Shah. Madah Hussain deceased with the collusion of consolidation staff got our land in his favour, upon which we preferred an appeal against the consolidation proceedings. The property was

restored to us up till Revenue Board. The record was corrected by the Revenue Staff in my favour and others. This bore grudge to the complainant party as the possession of land was delivered to us after correction of revenue record. This prompted the complainant party to lodge this false case against me, my sons and Aman Ullah. I have no relation whatsoever with the complainant party except as stated by me as above. The motive stated is false and favourless.

Likewise, co-accused Riaz Hussain in his statement examined under Section 342 Cr.P.C. deposed as under:-

“The PWs of the case are very closely related with each others and inimical to me and my other co-accused due to previous enmity stated in my reply to the question No.3. So they have falsely implicated me in this case. It was an unseen occurrence. The deceased was done to death by unknown assailants as deceased was having many enemies. So he was done to death in different manner, different time and different place and later on, due to enmity, I and my father Rab Nawaz, my brother Ijaz Hussain along Aman Ullah were implicated in this case to revenge their enmity. The occurrence was un-witnessed. Later on, my enemy was called upon and with due deliberation, consultation and after padding, this false case was registered against me. During course of investigation, I was declared innocent. I also produced CSs of my presence in marriage ceremony at Dera Ismail Khan. The CDs are P-2/1-2 which were secured by the IO through recovery memo Ex.PC and the same show my presence in District Dera Ismail Khan and on the day and time of alleged occurrence, I was so declared innocent due to the above-said evidence.”

Likewise, Ijaz Hussain, accused in his statement examined under Section 342 Cr.P.C. deposed as under:-

“The PWs of the case are very closely related with each others and inimical to me and my other co-accused due to previous enmity stated in my reply to the question No.3. So they have falsely implicated me in this case. It was an unseen occurrence. The deceased was done to death by unknown assailants as deceased was having many enemies. So he was done to death in different manner, different time and different place and later on, due to enmity, I and my father Rab Nawaz, my brother Rab Nawaz along Aman Ullah were implicated in this case to revenge their enmity. The occurrence was un-witnessed. Later on, my enemy was called upon and with due deliberation, consultation and after padding, this false case was registered against me. During course of investigation, I was not found involved in this case.”

Similarly, Aman Ullah, accused in his statement examined under Section 342 Cr.P.C. deposed as under:-

“The PWs of the case are very closely related with each others and inimical to me and my other co-accused due to previous enmity stated in my reply to the question No.3. So they have falsely implicated me in this case. It was an unseen occurrence. The deceased was done to death by unknown assailants as deceased was having many enemies. So he was done to death in different manner, different time and different place and later on, due to enmity, I and my co-accused persons were implicated in this case to revenge their enmity. The occurrence was un-witnessed. Later on, my enemy was called upon and with due deliberation, consultation and after padding, this false case was registered against me. During course of investigation, I was not found involved in this case.”

10. After hearing the arguments advanced by the learned counsel appearing on behalf of the parties, the learned trial court, while evaluating the evidence available on record, found the version of the prosecution as correct beyond

any shadow of doubt, which resulted into conviction of the appellants in the above stated terms.

11. Learned counsel for the appellants have submitted that they are absolutely innocent; they have falsely been involved in the case by the complainant with *malafide* intention; that in the FIR, the complainant had given collective role to the appellants and later on, the prosecution witnesses made dishonest improvements and they attributed specific roles to the appellants; that the motive, as alleged by the prosecution, has not been proved in this case. Learned counsel for the appellants has finally submitted that the prosecution had miserably failed to prove its case against the appellants beyond the shadow of doubt, thus, this appeal be accepted and the appellants may be acquitted from the charge.

12. On the other hand, the learned Deputy Prosecutor General for the State assisted by the learned counsel for the complainant have opposed the instant appeal and have submitted that the appellants have specifically been named in the FIR with specific role; that there was no reason for false implication of the appellants; that there is no material conflict between the testimony of the witnesses; that the motive has also been proved against the appellants by the prosecution; that the learned trial court has committed material irregularities and illegalities while awarding life imprisonment by the appellants. Lastly the learned counsel for the complainant has prayed for enhancement of their sentence from life imprisonment to death of the appellants.

13. I have heard the arguments advanced by the learned counsel for the appellants as well as the learned counsel for the complainant assisted by the learned Law Officer and have perused the record minutely.

14. The incident in the present case had taken place according to the prosecution on 14.06.2011 at 6:00 p.m. and the F.I.R. (Exh.PD) was recorded on the oral complaint of the complainant (PW-6) at 7:30 p.m. at the Police Station Saddar, Bhakkar, situated at a distance of 6/7 Kilometers from the place of occurrence. It has been noted that Mst. Hameeda Bibi (PW-6) during

her cross-examination deposed that, "Jewan Shah is resident of village Razai Shah. Mureed Kazim is resident of Mumdani village. Both Muhammad Kazim and Jewan Shah who accompanied me at the time of recording FIR reached at the place of occurrence within 15 to 20 minutes after the occurrence. Both the above said persons reached on motorcycle but I cannot tell that they reached at the place of occurrence on one motorcycle or by different motorcycles. I have informed the above-said persons about the occurrence on cell phone. When the above-said persons reached at the place of occurrence, my father had died." The complainant-Mst. Hameedan Bibi (PW-6) also deposed during cross-examination that, "I left my house at about 7:30 p.m. for registration of case. The distance between my house and Police Station Saddar Bhakkar is about 05/06 kilometers. I went to the Police Station on motorcycle rickshaw. PWs Nazir and Meesam Temaar were also with me. It took me 15 to 20 minutes in reaching Police Station. Volunteered that I reached at Police Station at 7:30 p.m." This part of her (PW-6) statement does not appear to be correct because this witness deposed that she left her house at 7:30 p.m. and also reached at Police Station at 7:30 p.m. which is not possible. Whereas, Nazir Hussain (PW-7) deposed during cross-examination that, "Mst. Hameedan Bibi complainant left the spot at about 6:30/6:45 p.m. along with Jewan Shah and Kazim Hussain. Jewan Shah and Kazim Hussain may be reached at the spot at about 6:15 p.m." He (PW-7) further deposed during cross-examination that, "It is correct that house of Mureed Kazim situated in Mouza Mumdani is at a distance of 20 kilometers from the place of occurrence. Aforementioned Mureed Kazim is husband of sister of my wife. The house of Jewan Shah is at a distance of 4/5 kilometers from the place of occurrence." From the above-said deposition of the witnesses, it revealed that the complainant (PW-6) took 15 to 20 minutes in reaching the Police Station on motorcycle rickshaw and before leaving the place of occurrence, she called Mureed Kazim (Behnoi) and Syed Jewan Shah, Lumberdar, then she (PW-6) went with them to the Police Station for reporting the incident. This absolutely shows that the F.I.R. (Exh.PD) was registered after consultation and

deliberation. There remains no manner of doubt that soon after the incident the complainant (PW-6) had not lodged the F.I.R. (Exh.PD), thus, fatal for prosecution.

15. The entire prosecution case against the appellants-Ijaz Hussain, Raiz Hussain, Rab Nawaz and Aman Ullah rests on the oral evidence of Mst. Hameedan Bibi-the complainant (PW-6) and Nazir Hussain (PW-7) who claimed to be an eye-witnesses to the incident which took place at about 6.00 p.m. on 14.06.2011 wherein Madah Hussain, the father of the complainant (PW-6) succumbed at the spot due to throttling. The earliest version by the prosecution given in the F.I.R (Exh.PD) was that the accused persons again caught hold of her father after chasing and started giving beating to him, the result whereof complainant's father fell down on the ground and that accused Rab Nawaz caught hold of her father from his legs and remaining accused persons pressed his neck. The earliest version of the prosecution was that the accused persons except accused Rab Nawaz collectively pressed the neck of the deceased. The learned counsel for the appellants contended that Mst. Hameedan Bibi-the complainant (PW-6) and Nazir Hussain (PW-7) had made major contradictions and dishonest improvements in the prosecution case and on this count, their testimonies should be rejected as same has no substance. I, therefore, carefully scrutinized the same. While appreciating the evidence, the court has to take into consideration whether the contradictions/omissions had been of such magnitude that they may materially affect the prosecution case. Minor contradictions, inconsistencies, embellishments or improvements on trivial matters without effecting the core of the prosecution case should not be made a ground to reject the evidence in its entirety. However, where the omission(s) amount to a contradiction, creating a serious doubt about the truthfulness of a witness and other witness also makes material improvements before the court in order to make the evidence acceptable, it cannot be safe to rely upon such evidence. First I would like to refer the evidence of Mst. Hameedan Bibi-the complainant (PW-6) who reiterates that she is posed to be an eye-witness of the alleged incident. Her (PW-6) cross-examination is

material, wherein most of the omissions have been brought on record by the defence. I, find it necessary to reproduce herein below the material facts which she (PW-6) had stated before the court, but had not stated in her statement given by her to the police. The contradictions and omissions brought on the record in the evidence of the prosecution witnesses i.e. Mst. Hameedan Bibi-the complainant (PW-6) and Nazir Hussain (PW-7) by the defence, which are reproduced below:

Statement of Mst. Hameeda Bibi-the complainant (PW-6) who deposed during cross-examination that,

*"I have stated before the police that Rab Nawaz accused caught hold of my father from legs, Aman Ullah put his hands on the neck of my father, Riaz accused put his knee on the chest of my father, Ijaz Hussain accused caught hold of my father from his arms and Aman Ullah pressed the neck of my father. **Confronted with Ex.PD where it is not so recorded.** I have not stated in Ex.PD that Rab Nawaz accused caught hold of my father from his legs while all the other accused persons pressed the throat of my father. **Confronted with the Ex.PD where all the other accused persons pressed the throat of my father is recorded.** I had moved an application for disinterment of body of deceased father for re-post mortem examination. I had myself got dictated that application. I did not dictate to my counsel in the application Ex.PE that Riaz Hussain, Ijaz Hussain and Aman Ullah accused pressed the throat of my father. **Confronted with Ex.PE where it is so recorded.** I had not narrated the time of occurrence at the time of moving application for disinterment of dead body as 4.00 p.m. **Confronted with application Ex.PE where time of occurrence is mentioned as 4.00 p.m.**"*

Similar contradictions and omissions are brought on record in the evidence of **Nazir Hussain (PW-7), who deposed during cross-examination that,**

"I have got recorded in my statement before the Police that Aman Ullah accused present in the Court pressed the neck of Madah Hussain deceased.

Confronted with Ex.D.C where it is not so recorded. I had got recorded in my statement under section 161 Cr.P.C that Ijaz Hussain accused present in court caught hold the arms of deceased Madah Hussain. **Confronted with Ex.D.C where it is not so recorded.** I had got recorded in my statement before the police that Riaz Hussain accused pressed his knees upon the chest of Madah Hussain deceased. **Confronted with Ex.DC where it is not so recorded."**

16. The story regarding specific role of the accused persons by the complainant (PW-6) and the witness (PW-7) is nothing but an improvement. Besides, both prosecution witnesses denied the suggestions that Aqsa Bibi (daughter of Nazir Hussain, (PW-7) was residing with the complainant (PW-6) and she (Aqsa Bibi) appeared before the Investigating Officer and stated that his deceased "Nana" was alone. Whereas, the Investigating Officer-Hafiz Muhammad Rustam Inspector (PW-10) deposed during cross-examination that, **"It is correct that Aqsa Bibi daughter of Nazir Hussain PW joined the investigation before me and I recorded her statement. It is also correct that in her statement, she stated that she informed the complainant about the occurrence."** He (PW-10) also deposed that, **"I found Riaz Hussain as innocent after thorough investigation after recording statements of so many persons who appeared in defence of Raiz Hussain accused. It is also correct that I found no role on the part of accused Rab Nawaz in my investigation though he was present at the spot."** Serious doubts are, therefore, raised about the fact whether or not the aforesaid witnesses had eye-witnessed the alleged incident. The effect of the proof of contradictions is to discredit the witness as being unreliable as substantive evidence in the court is contrary to what they stated before the police as well as they suppressed material facts from the court. In such case, the only option before the Court will be to hold the substantive evidence of the said witnesses in the Court as unreliable. Having regard to the contradictions and omissions in the evidence of the prosecution witnesses, I find it unsafe to rely on such evidence to base conviction of the appellants. It was held by the Hon'ble Supreme Court of

Pakistan in the case of **Muhammad Rafique and others v. The State** (2010 S C M R 385) that:-

*“.....This shows that the witness has supported suppressed the truth and spoke lie and has no sanctity of Oath. This Court in the case of Saeed Muhammad Shah v. State 1993 SCMR 550 observed that if a witness improves his statement on material aspects of the case then such improvement is not worthy of **reliance and the** evidence of such witness requires corroboration. In the case of Khalid Javed v. State 2003 SCMR 1419 while reiterating the **above rule, it was** further observed that such witness is to be considered to be wholly unreliable and it is not advisable to place explicit reliance upon his evidence.....”.*

17. There is another aspect of the case, the prosecution witnesses had concealed and held back true and complete facts regarding motive part of the case. The motive set up by the prosecution for committing the crime in the F.I.R. (Exh.PD) is that the accused persons had taken forcible possession of the land owned by the complainant's father, who filed suit in the court and due to this grudge, all the accused persons in furtherance of their common intention committed murder of Madah Hussain, deceased by pressing his neck. To prove the motive, the prosecution examined Mst. Hameedan Bibi-the complainant (PW-6) and Nazir Hussain (PW-7). Mst. Hameedan Bibi-the complainant (PW-6) deposed during cross-examination that, "**We have grudge against the accused party due to taking forcible possession of our landed property. Volunteered that my father had instituted a suit.**" However, she denied the suggestion that appeal filed by her father was dismissed up to the level of Revenue Board. On the other hand Nazir Hussain (PW-7) deposed during cross-examination that, "**During consolidation proceedings, Rab Nawaz accused obtained the land of Madah Hussain deceased forcibly. Madah Hussain deceased filed appeals in consolidation department against Rab Nawaz etc but I do not know whether above-said appeals are dismissed**

or not." On the other hand, on the application of the accused persons for summoning of record of consolidation, record of rights, Khasra Girdawaries, Aaks Shajra and record pertaining to the year 2011 of Halqa Mouza Razai Shah for determining illegal possession of the accused persons, which was in the possession of Niaz Hussain, Halqa Patwari (PW-3), was allowed by the learned trial court on 05.07.2012. Niaz Hussain, Halqa Patwari (PW-3) deposed during cross-examination that, "**The consolidation proceedings of Razai Shah Shumali were carried out prior to this occurrence. Prior to this occurrence the land of Rab Nawaz accused was allotted to Madah Hussain deceased and before this occurrence, Rab Nawaz lodged an appeal and the land was restored to Rab Nawaz accused in consolidation proceedings and we corrected the record in accordance with the order of the Collector in favour of Rab Nawaz accused.**" As the persecution witnesses Mst. Hameeda Bibi-the complainant (PW-6) and Nazir Hussain (PW-7) had concealed substantial facts, as such, it was observed that there testimony is wholly unreliable.

18. Therefore, the whole story that the accused persons had taken forcible possession of the land of her father has not been proved by the persecution rather from the order dated 23.08.2007 passed by the Executive District Officer (Revenue) Bhakkar (Exh.DV) and order dated 03.09.2009 passed by the Member (Consolidation) Board of Revenue, Punjab (Exh.DW) it reveals that appeal and revision filed by father of the complainant against the order dated 22.02.2006 passed by the Deputy District Officer (Consolidation) Mianwali was dismissed. The false story regarding the motive of the occurrence and dismissal of the appeal and revision filed by father of the complainant vitally affected the prosecution case which tended to show that the prosecution was guilty of concealment of the real facts.

19. So far as medical evidence is concerned, I have gone through both re-post mortem report (Exh.PL), final opinion (Exh.PL/3) and autopsy Histopathological report of Forensic Histopathologist (Exh.PM) as well as post mortem examination report (Exh.DH). The Doctor Imran Ansari who

conducted first autopsy over the dead body of the deceased, does not appear in witness box and he was given up by the learned Assistant District Public Prosecutor being won over by the accused party. As per first post mortem examination report (Exh.DH) the Doctor opined the cause of death was due to injury No.1. The first post mortem examination report to the effect that injury No.4 was postmortem in nature and the death of the deceased caused due to injury No.1 have been challenged by the complainant. Whereon, re-post mortem examination of the dead body of the deceased was conducted after disinterred and exhumed the grave by the orders of the learned Judicial Magistrate. In fact the re-post mortem was conducted by team of doctors and cause of death could not be ascertained by them, however, they opined that final report will be given on receipt of the report from Bacteriologist, Government of the Punjab. Thereafter on receiving autopsy Histopathological report No.1100 FH dated 29.11.2011 (Exh.PM) they opined that most probable mode of death is asphyxia caused by throttling. Whereas on perusal of autopsy Histopathological report No.1100 FH dated 29.11.2011 (Exh.PM) it reveals that Forensic Histopathologist could not express any opinion. The opinion of Forensic Histopathologist reads as under:-

"Histological examination of sections reveals bony fragments, the soft tissue element is totally autolysed, the cellular and nuclear details have reduced to granular debris. So no opinion can be expressed. "

20. That being so, ordinarily, the value of medical evidence is only corroborative. It proves that the injuries could have been caused in the manner alleged and nothing more. The use which the defence can make of the medical evidence is to prove that the injuries could not possibly have been caused in the manner alleged and thereby discredit the eyewitnesses. Unless, however, the medical evidence in its turn goes so far that it completely rules out all possibilities whatsoever of injuries taking place in the manner alleged by eyewitnesses. Dr. Muhammad Ishaq (PW-11) also deposed during cross-examination that,

*“Similarly final report was kept under observation subject to receipt of report from the Bacteriologist, Govt. of Punjab, Lahore and no opinion was written by the Board at the time of re-post mortem examination. I received report of Histopathologist on 29.11.2011. I have not mentioned the date of giving date of final opinion regarding cause of death. The report of Histopathologist was that, “Histological examination of sections reveals bony fragments, the soft tissue element is totally autolysed, the cellular and nuclear details have reduced to granular debris. **So no opinion can be expressed. No further material was received by the Medical Board before giving the final opinion.**”*

Underline for emphasizes.

However autopsy Histopathological report No.1100 FH dated 29.11.2011 (Exh.PM) creates doubts about the cause of death given by the Standing Board. Even otherwise, when the prosecution witnesses i.e. PW-6 and PW-7 were being disbelieved, the medical evidence could not alone form the basis of conviction where death was homicidal.

21. I have considered all aspects of the case and have come to the conclusion that the prosecution could not prove its case against the appellants beyond the shadow of doubt. It is by now well settled law that if there is a single circumstance which creates doubt regarding the prosecution case, the same is sufficient to give benefit of doubt to the accused. It was held by the Hon’ble Supreme Court of Pakistan in the case of **Muhammad Akram v. The State** (2009 S C M R 230) wherein it is held that:-

“It is axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a

*matter of grace and concession but as a
matter of right.”*

22. In the light of above, I am of the view that the prosecution has failed to prove its case against the appellants beyond any shadow of doubt, therefore, I **accept Criminal Appeal No.38 of 2014** filed by Ijaz Hussain, Riaz Hussain, Rab Nawaz and Aman Ullah appellants, set aside their conviction and sentence recorded by the learned Sessions Judge, Bhakkar vide judgment dated 18.12.2013 and **acquit** them of the charge by extending them the benefit of doubt. **Ijaz Hussain and Aman Ullah, the appellants are in custody, they be released forthwith, if not required in any other case.** However, **Rab Nawaz and Riaz Hussain, the appellants are on bail, as Crl.Misc.No.01 of 2014** qua suspension of sentence of the appellants was accepted by this Court vide order dated 22.9.2015, therefore, **their surety bonds stand discharged.**

23. **Criminal Revision No.80 of 2014** filed by Mst. Hameeda Bibi-complainant against the respondents No.2 to 5 for enhancement of sentence of respondents/accused, namely, Ijaz Hussain, Riaz Hussain, Rab Nawaz and Aman Ullah is concerned, for the reasons stated above, the same has no weight, which is accordingly **dismissed**.

**(AALIA NEELUM)
JUDGE**

Approved for Reporting.

Judge

Hamid/*